

		Plaintiff is ordered to serve notice of this ruling.
58	<i>Robles vs. The Regents of the University of California</i>	Defendant The Regents of the University of California (“UC Regents”) Motion for Summary Judgment is denied. UC Regents’ evidentiary objections are overruled. UC Regents moves for an order granting summary judgment on the sole cause of action for professional negligence in Plaintiff Edmond Robles’ (“Robles”) Complaint on the grounds that there are no triable issues of material fact because UC Regents met the standard of care at all relevant times with respect to Robles. <u>Summary Judgment Standard</u> “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by